

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
MIGUEL ORTIZ,

Plaintiff,

SUMMONS

-against-

INDEX NO.

POLICE OFFICER FIGUEROA,
THE CITY OF NEW YORK, "JOHN DOE #1",
"JOHN DOE #2" and "JOHN DOE #3,
(the names being fictitious and intended to designate
police officers whose identities are presently unknown),

FILED ON:

Defendants.

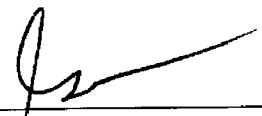
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of the occurrence

DATED: New York, New York
June 11, 2019

Yours, etc.

By: 

GREG GARBER, ESQ.

Attorney for Plaintiff

60 Madison Avenue - Suite 1005

New York, N.Y. 10010

(212) 779-2740

Defendants' Addresses:

POLICE OFFICER FIGUEROA
c/o 28TH PRECINCT
2271-89 8th Ave.
New York, NY, 10027-5319THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MIGUEL ORTIZ,

Plaintiff,

INDEX NO.

VERIFIED COMPLAINT

-against-

POLICE OFFICER FIGUEROA,
THE CITY OF NEW YORK, "JOHN DOE #1",
"JOHN DOE #2" and "JOHN DOE #3,
(the names being fictitious and intended to designate
police officers whose identities are presently unknown),

Defendants.

-----X
Plaintiff, by his attorney, GREG GARBER, ESQ. complaining of the above
named defendant respectfully alleges upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION
PLAINTIFF MIGUEL ORTIZ ALLEGES:

1. That at all times hereinafter mentioned the plaintiff, MIGUEL ORTIZ was
and still is a resident of the County, City and State of New York.

2. That at all times hereinafter mentioned, the defendant, THE CITY OF
NEW YORK, was and still is a domestic municipal corporation duly organized and existing
under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned and specifically on the 2nd day of
January, 2019, the defendant, THE CITY OF NEW YORK owned, operated and controlled a
police department known as the New York City Police Department.

4. That at all times hereinafter mentioned and specifically on the 2nd day of
January, 2019, New York City Police Department was an agency and department of the CITY
OF NEW YORK, with its principal offices located at 1 Police Plaza, New York, N.Y. 10038.

5. That at all times hereinafter mentioned and specifically on the 2nd day of
January, 2019, the defendant, POLICE OFFICER FIGUEROA (first name of POLICE OFFICER
FIGUEROA being presently unknown) was employed by the defendant THE CITY OF NEW
YORK to work as a police officer in the New York City Police Department.

6. That at all times hereinafter mentioned and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #1" (whose identity is presently unknown) was employed by the defendant THE CITY OF NEW YORK to work as a police officer in the New York City Police Department.

7. That at all times hereinafter mentioned and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #2" (whose identity is presently unknown) was employed by the defendant THE CITY OF NEW YORK to work as a police officer in the New York City Police Department.

8. That at all times hereinafter mentioned and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #3" (whose identity is presently unknown) was employed by the defendant THE CITY OF NEW YORK to work as a police officer in the New York City Police Department.

9. That at all times hereinafter mentioned and specifically on the 2nd day of January, 2019, the defendant, POLICE OFFICER FIGUEROA was acting in the scope of his employment as a police officer for the defendant, THE CITY OF NEW YORK and the New York City Police Department.

10. That at all times hereinafter mentioned and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #1" was acting in the scope of his employment as a police officer for the defendant THE CITY OF NEW YORK and the New York City Police Department.

11. That at all times hereinafter mentioned and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #2" was acting in the scope of his employment as a police officer for the defendant THE CITY OF NEW YORK and the New York City Police Department.

12. That at all times hereinafter mentioned and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #3" was acting in the scope of his employment as a police officer for the defendant THE CITY OF NEW YORK and the New York City Police Department.

13. Upon information and belief, that at all times herein mentioned and specifically on the 2nd day of January, 2019, the defendant, POLICE OFFICER FIGUEROA was a Police Officer for defendant THE CITY OF NEW YORK and the New York City Police

Department, attached to the New York City Police Department 28th Precinct, County, City and State of New York.

14. Upon information and belief, that at all times herein mentioned, and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #1" was a Police Officer for defendant THE CITY OF NEW YORK and the New York City Police Department, attached to the New York City Police Department 28th Precinct, County, City and State of New York.

15. Upon information and belief, that at all times herein mentioned, and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #2" was a Police Officer for defendant THE CITY OF NEW YORK and the New York City Police Department, attached to the New York City Police Department 28th Precinct, County, City and State of New York.

16. Upon information and belief, that at all times herein mentioned, and specifically on the 2nd day of January, 2019, the defendant, "JOHN DOE #3" was a Police Officer for defendant THE CITY OF NEW YORK and the New York City Police Department, attached to the New York City Police Department 28th Precinct, County, City and State of New York.

17. Upon information and belief, that at all times herein mentioned and specifically on the 2nd day of January, 2019, the defendant, POLICE OFFICER FIGUEROA was a Police Officer employed by the defendant THE CITY OF NEW YORK and the New York City Police Department and assigned to the New York City Police Department 28th Precinct, County, City and State of New York.

18. Upon information and belief, that at all times herein mentioned and specifically on the 2nd day of January, 2019, the defendant "JOHN DOE #1" was a Police Officer employed by the defendant THE CITY OF NEW YORK and the New York City Police Department and assigned to the New York City Police Department 28th Precinct, County, City and State of New York.

19. Upon information and belief, that at all times herein mentioned and specifically on the 2nd day of January, 2019, the defendant "JOHN DOE #2" was a Police Officer employed by the defendant THE CITY OF NEW YORK and the New York City Police Department and assigned to the New York City Police Department 28th Precinct, County, City

and State of New York.

20. Upon information and belief, that at all times herein mentioned and specifically on the 2nd day of January, 2019, the defendant "JOHN DOE #3" was a Police Officer employed by the defendant THE CITY OF NEW YORK and the New York City Police Department and assigned to the New York City Police Department 28th Precinct, County, City and State of New York.

21. That Police Officer POLICE OFFICER FIGUEROA was, on the 2nd day of January, 2019, at the time and place hereinafter mentioned, a police officer employed by the defendant, THE CITY OF NEW YORK and the New York City Police Department and was acting in the performance of his duties and authority as a New York City Police Department police officer.

22. That Police Officer "JOHN DOE #1" was, on the 2nd day of January, 2019, at the time and place herein mentioned, a police officer employed by the defendant, THE CITY OF NEW YORK and the New York City Police Department and was acting in the performance of his duties and authority as a New York City Police Department police officer.

23. That Police Officer "JOHN DOE #2" was, on the 2nd day of January, 2019, at the time and place herein mentioned, a police officer employed by the defendant, THE CITY OF NEW YORK and the New York City Police Department and was acting in the performance of his duties and authority as a New York City Police Department police officer.

24. That Police Officer "JOHN DOE #3" was, on the 2nd day of January, 2019, at the time and place herein mentioned, a police officer employed by the defendant, THE CITY OF NEW YORK and the New York City Police Department and was acting in the performance of his duties and authority as a New York City Police Department police officer.

25. Upon information and belief, that at all times herein mentioned, the defendant, THE CITY OF NEW YORK and the New York City Police Department, their agents, servants, and/or employees trained, managed, supervised, controlled and instructed the aforementioned defendant police officers.

26. That on the 2nd day of January, 2019, the defendant POLICE OFFICER FIGUEROA was on duty and was acting within the scope of his authority as a Police Officer for the defendant, THE CITY OF NEW YORK and the New York City Police Department.

27. That on the 2nd day of January, 2019 defendant "JOHN DOE #1" was on

duty and was acting within the scope of his authority as a Police Officer for the defendant, THE CITY OF NEW YORK and the New York City Police Department.

28. That on the 2nd day of January, 2019 defendant "JOHN DOE #2" was on duty and was acting within the scope of his authority as a Police Officer for the defendant, THE CITY OF NEW YORK and the New York City Police Department.

29. That on the 2nd day of January, 2019 defendant "JOHN DOE #3" was on duty and was acting within the scope of his authority as a Police Officer for the defendant, THE CITY OF NEW YORK and the New York City Police Department.

30. That on or about the 2nd day of January, 2019, the Plaintiff MIGUEL ORTIZ while lawfully operating a motor vehicle on West 118th Street between Lenox Avenue and 5th Avenue, County, City and State of New York, was approached, harassed, battered, beaten, assaulted, unlawfully detained, sodomized, falsely imprisoned and falsely arrested by the aforementioned defendant police officers after he was stopped by the police officers. The incident occurred when plaintiff was driving a 2015 Lexus ES 350 motor vehicle registered to Joshua Hanuszczyk, bearing License No. 24297484, GA traveling E/B on West 118th Street, when he was pulled over by 3-4 police officers possibly from a Special Unit – the police vehicle was not marked like a regular police vehicle. One of the police officers, possible name, “Figueroa”, possible Tax ID/Badge No. 955915 approached the plaintiff’s vehicle and asked for the registration. Plaintiff was told he was being pulled over because the license plate number was covered. After the owner of the vehicle gave the police officer the registration, the police officer stated that he smelled “weed” and asked plaintiff MIGUEL ORTIZ to get out of the vehicle and put his hands on the car. The officer then began to search plaintiff MIGUEL ORTIZ aggressively and keeps insisting that plaintiff has weed on him. During the search the arresting officer grabbed plaintiff’s penis at which time plaintiff flinched and asked the officer to not do that. The officer then told plaintiff that because he was "tensing up" it meant that he definitely had something on him. The officer continued to search plaintiff with two other cops surrounding him and grabbed plaintiff’s penis two more times. The cop then removed plaintiff’s pants down to his ankles and attempted to sodomize plaintiff. Plaintiff then spoke up loudly and requested the police officer pull up his pants. The police officer pulled up plaintiff’s pants and then handcuffed plaintiff. Plaintiff was then taken to the 28th Precinct where he was strip searched in a room with 6 other police officers. Plaintiff was then given a ticket for disorderly conduct and

released within an hour at approximately 12:30 a.m. on January 3, 2019.

31. The Plaintiff was falsely arrested by the defendant police officers.

32. The Plaintiff was falsely imprisoned by the defendant police officers.

33. The Plaintiff was falsely and maliciously prosecuted by the defendants following his unlawful arrest and imprisonment.

34. That on or about the 2nd day of January, 2019, the Plaintiff was battered, beaten, assaulted, unlawfully detained, sodomized, falsely imprisoned and falsely arrested, and maliciously prosecuted, due to the negligence, culpable conduct, carelessness and recklessness of the defendant police officers and defendant THE CITY OF NEW YORK and the New York City Police Department, in failing to properly hire, supervise and train its police officers herein, as a result of which the Plaintiff herein was caused to sustain serious and permanent personal injuries.

35. That on or about the 2nd day of January, 2019, due to the willful and malicious conduct of defendant police officers, the Plaintiff was caused to sustain serious and permanent personal injuries.

36. That all of the foregoing occurred solely as a result of the carelessness, recklessness, culpable conduct and negligence of the defendants in failing to properly hire, supervise and train its police officers, including the defendant police officers named herein, in that they failed to properly monitor, supervise and control the activities of their police officers and more specifically the police officers named herein; in inadequately and improperly supervising and controlling the activities of their police officers and more specifically the police officers named herein; in negligently and carelessly becoming abusive, belligerent, assaultive, and unruly; in failing to employ competent personnel; in negligently, carelessly and recklessly assaulting, attacking and abusing the Plaintiff; in negligently using excessive force; in violating the applicable rules, statutes and ordinances which govern the activities of the defendant police officers, their agents, servants, and/or employees and in otherwise being negligent in the premises.

37. In doing and committing all the acts and things aforesaid defendant, THE CITY OF NEW YORK and the New York City Police Department, their agents, servants and/or employees acted carelessly and negligently in failing to properly hire, train and supervise its police officers.

38. That before, during and after the aforementioned incident, the Plaintiff

was assaulted by the defendants, POLICE OFFICER FIGUEROA, "JOHN DOE #1", "JOHN DOE #2" and "JOHN DOE #3" by unlawfully and intentionally menacing and otherwise touching him without justification, excuse or consent.

39. In doing all the acts and things aforesaid defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

40. That by reason of the foregoing, the Plaintiff was caused to and sustain severe, painful and serious personal injuries in and about his head, limbs and body; became sick, sore, lame and disabled; was caused to suffer contusions, abrasions, lacerations, dislocations and sprains; was caused to suffer a severe shock to his nervous system and certain internal injuries; was caused to suffer and still continues to suffer great physical pain, emotional distress, mental anguish and bodily injuries; was confined to a hospital, bed and home for a long period of time; was compelled to undergo hospital and medical aid, treatment and attention and to expend diverse sums of money for same; the Plaintiff was greatly injured both bodily and mentally; has been prevented from engaging in his usual activities for a long period of time, all with attendant losses and since some of said injuries are of a permanent and long lasting nature, and upon information and belief he will continue to suffer continuous pain, suffering, inconvenience, loss of enjoyment of life, and damage in the future.

41. That heretofore and more specifically on the 18th day of January, 2019, a verified statement of the Plaintiff's claim and notice of intention to sue herein was duly served upon THE CITY OF NEW YORK and said verified statement of the Plaintiff's claim and notice of intention to sue, were so served within ninety (90) days of the happening of this accident as is provided by the applicable provisions of the General Municipal Law of the State of New York.

42. That said verified statement of the Plaintiff's claim included, among other things, the name and address of the Plaintiff, the name and post office address of the Plaintiff's attorney, the nature of the claim, the place and manner in which the claim arose and the items of damage for the injuries claimed at the time to have been sustained.

43. That at least thirty (30) days have elapsed since the verified statement of the Plaintiff's claim and notice of intention to sue herein referred to was served upon the defendant CITY OF NEW YORK and the defendant CITY OF NEW YORK has failed to make an adjustment of payment thereof and this action has been commenced within one (1) year and

ninety (90) days of the cause of action herein alleged had occurred.

44. That on the 20th day of May, 2019 a hearing was conducted by THE CITY OF NEW YORK, pursuant to the General Municipal Law of the State of New York and authorization was given to the defendant, THE CITY OF NEW YORK, to conduct a physical examination of the plaintiff, at its request.

45. That the amount of said damages sustained by the Plaintiff as a result of the aforesaid serious and permanent personal injuries and pecuniary losses are in a substantial sum of money to be determined by the Court and jury.

46. That as a result of the foregoing facts and circumstances, the Plaintiff MIGUEL ORTIZ alleges that he is entitled to money damages against all of the defendants, jointly, as well as severally, in such amounts that exceed the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

47. This action, as well as all causes of action pleaded herein, falls within one or more of the exceptions set forth in CPLR ss1602.

AS AND FOR A SECOND CAUSE OF ACTION
PLAINTIFF MIGUEL ORTIZ ALLEGES:

48. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

49. That the defendant THE CITY OF NEW YORK and the New York City Police Department were in charge of and controlled the employment, hiring and training and supervision of its police officers, including the defendant police officers herein..

50. That accordingly, the defendant CITY OF NEW YORK and the New York City Police Department had an obligation to use reasonable care in the hiring, employment, training and supervision of its police officers, including the defendant police officers herein.

51. That in arresting the Plaintiff on the 2nd day of January, 2019, the defendants POLICE OFFICER FIGUEROA, "JOHN DOE #1", "JOHN DOE #2" and "JOHN DOE #3"" acted in such a manner so as to constitute gross negligence and under such circumstances as to show heedlessness and utter disregard of the result upon the rights and safety of others and more particularly the Plaintiff herein.

52. That the defendant police officers were careless and negligent in the manner in which they arrested the Plaintiff on the 2nd day of January, 2019.

53. That in doing all the acts and things as aforesaid, the defendant police officers acted negligently in failing to use such reasonable care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

54. That in doing all the acts and things aforesaid the defendant, THE CITY OF NEW YORK and the New York City Police Department, their agents servants and/or employees, were careless and negligent in failing to properly hire and train its police officers, including the defendant police officers involved herein.

55. That as a result of the carelessness and negligence of the CITY OF NEW YORK and the New York City Police Department, the Plaintiff was seriously and permanently injured.

56. That as a result of the aforesaid facts and circumstances, the Plaintiff is entitled to money damages against the defendant police officers and the defendant CITY OF NEW YORK and the New York City Police Department, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

AS AND FOR A THIRD CAUSE OF ACTION
PLAINTIFF MIGUEL ORTIZ ALLEGES:

57. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

58. On the 2nd day of January, 2019 the defendant POLICE OFFICER FIGUEROA assaulted the Plaintiff, by while having the real and apparent ability to cause imminent harmful and offensive bodily contact to the Plaintiff, intentionally performed violent and menacing acts which threatened such contact to the Plaintiff and committed an assault upon the Plaintiff because such acts by the defendant POLICE OFFICER FIGUEROA caused the Plaintiff to have apprehension of such contact.

59. On the 2nd day of January, 2019 defendant police officer "JOHN DOE

#1" assaulted the Plaintiff, by while having the real and apparent ability to cause imminent harmful and offensive bodily contact to the Plaintiff, intentionally performed violent and menacing acts which threatened such contact to the Plaintiff and committed an assault upon the Plaintiff because such acts by the defendant police officer "JOHN DOE #1" caused the Plaintiff to have apprehension of such contact.

59. On the 2nd day of January, 2019 defendant police officer "JOHN DOE #1" assaulted the Plaintiff, by while having the real and apparent ability to cause imminent harmful and offensive bodily contact to the Plaintiff, intentionally performed violent and menacing acts which threatened such contact to the Plaintiff and committed an assault upon the Plaintiff because such acts by the defendant police officer "JOHN DOE #2" caused the Plaintiff to have apprehension of such contact.

60. On the 2nd day of January, 2019 defendant police officer "JOHN DOE #1" assaulted the Plaintiff, by while having the real and apparent ability to cause imminent harmful and offensive bodily contact to the Plaintiff, intentionally performed violent and menacing acts which threatened such contact to the Plaintiff and committed an assault upon the Plaintiff because such acts by the defendant police officer "JOHN DOE #3" caused the Plaintiff to have apprehension of such contact.

61. In doing all the acts and things aforesaid and committing the aforementioned assaults upon the Plaintiff, the defendant police officers acted intentionally, wilfully and maliciously.

62. Defendants, POLICE OFFICER FIGUEROA, "JOHN DOE #1", "JOHN DOE #2" and "JOHN DOE #3" were acting in the scope of their employment as police officers for the defendant, THE CITY OF NEW YORK and the New York City Police Department at the time they committed the aforementioned assaults upon the Plaintiff.

63. That as a result of the aforementioned assaults committed by the defendant police officers against the Plaintiff, the Plaintiff was seriously and permanently injured.

64. That as a result of the aforesaid assaults, the Plaintiff is entitled to damages against the defendants, jointly, as well as severally, in such amounts that exceed the jurisdictional limits of all lower Courts which would otherwise have jurisdiction over this matter.

65. That in as much as the aforesaid assaults committed by the defendant police officers upon the Plaintiff were malicious, wanton and intentional, the Plaintiff is entitled

to punitive damages as against the individual police officer defendants.

AS AND FOR A FOURTH CAUSE OF ACTION
PLAINTIFF MIGUEL ORTIZ ALLEGES:

66. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

67. That the defendant POLICE OFFICER FIGUEROA committed a battery upon the Plaintiff on the 2nd day of January, 2019, when, in an intentional, hostile and offensive manner, he touched the Plaintiff without the Plaintiff's consent and with the specific intention of causing harmful and offensive bodily contact to the Plaintiff.

68. That the defendant police officer "JOHN DOE #1" committed a battery upon the Plaintiff on the 2nd day of January, 2019, when, in an intentional, hostile and offensive manner, he touched the Plaintiff without the Plaintiff's consent and with the specific intention of causing harmful and offensive bodily contact to the Plaintiff.

69. That the defendant police officer "JOHN DOE #2" committed a battery upon the Plaintiff on the 2nd day of January, 2019, when, in an intentional, hostile and offensive manner, he touched the Plaintiff without the Plaintiff's consent and with the specific intention of causing harmful and offensive bodily contact to the Plaintiff.

70. That the defendant police officer "JOHN DOE #3" committed a battery upon the Plaintiff on the 2nd day of January, 2019, when, in an intentional, hostile and offensive manner, he touched the Plaintiff without the Plaintiff's consent and with the specific intention of causing harmful and offensive bodily contact to the Plaintiff.

71. That as a result of the aforesaid battery committed by the defendant police officers upon the person of the Plaintiff, the Plaintiff was seriously and permanently injured.

72. That Plaintiff is entitled to money damages against the defendant police officer defendants, jointly, as well as severally, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

73. That in as much as the aforesaid battery committed by the defendant police officers upon the Plaintiff was malicious and intentional, the Plaintiff is entitled to punitive damages against the defendant police officers, jointly, as well as severally, in addition to

all other monetary damages that the Plaintiff is entitled to.

AS AND FOR A FIFTH CAUSE OF ACTION
PLAINTIFF MIGUEL ORTIZ ALLEGES:

74. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

75. That on the 2nd day of January, 2019, the defendant POLICE OFFICER FIGUEROA used excessive and unreasonable force upon the Plaintiff in the course of his illegal arrest of the Plaintiff.

76. That on the 2nd day of January, 2019, the defendant police officer “JOHN DOE #1” used excessive and unreasonable force upon the Plaintiff in the course of his illegal arrest of the Plaintiff.

77. That on the 2nd day of January, 2019, the defendant police officer “JOHN DOE #2” used excessive and unreasonable force upon the Plaintiff in the course of his illegal arrest of the Plaintiff.

78. That on the 2nd day of January, 2019, the defendant police officer “JOHN DOE #3” used excessive and unreasonable force upon the Plaintiff in the course of his illegal arrest of the Plaintiff.

79. That as a result of the aforesaid use of excessive and unreasonable force used by the defendant police officers against the Plaintiff, the Plaintiff was seriously and permanently injured.

80. That as a result of the aforesaid, the Plaintiff is entitled to money damages against the defendant police officers, jointly, as well as severally, in such amounts that exceed the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
PLAINTIFF MIGUEL ORTIZ ALLEGES:

81. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if

herein fully set forth at length.

82. That at all times hereinafter mentioned and specifically on the 2nd day of January, 2019, the defendant police officers acted under color of law and without lawful authority or right and did violate Plaintiff's constitutional rights guaranteed under the Fourth, Fifth and Fourteenth Amendments of the Federal Constitution in violation of 28 U.S.C. 1983, as well as other applicable Federal and State laws.

83. That by reason of the violation of the Plaintiff's civil rights as aforesaid, the Plaintiff is entitled to compensatory and punitive damages, as well as attorney's fees as against the defendants, jointly, as well as severally, the amount of which exceeds the jurisdiction limitations of all lower Courts that might otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
PLAINTIFF MIGUEL ORTIZ ALLEGES:

84. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

85. That on the 2nd day of January, 2019, the defendant POLICE OFFICER FIGUEROA falsely imprisoned and arrested the Plaintiff in that he intentionally and without authority, detained the Plaintiff against the Plaintiff's will and thereby deprived the Plaintiff of his liberty.

86. That on the 2nd day of January, 2019, the defendant police officer "JOHN DOE #1" falsely imprisoned and arrested the Plaintiff in that he intentionally and without authority, detained the Plaintiff against the Plaintiff's will and thereby deprived the Plaintiff of his liberty.

87. That on the 2nd day of January, 2019, the defendant police officer "JOHN DOE #2" falsely imprisoned and arrested the Plaintiff in that he intentionally and without authority, detained the Plaintiff against the Plaintiff's will and thereby deprived the Plaintiff of his liberty.

88. That on the 2nd day of January, 2019, the defendant police officer "JOHN DOE #3" falsely imprisoned and arrested the Plaintiff in that he intentionally and without authority, detained the Plaintiff against the Plaintiff's will and thereby deprived the Plaintiff of

his liberty.

89. That the Plaintiff was aware and conscious of this false imprisonment and false arrest committed by the defendant police officers.

90. That the Plaintiff did not consent to the aforesaid false imprisonment and false arrest committed upon him by the defendant police officers.

91. That the defendant police officers did not have reasonable grounds to falsely imprison and falsely arrest the Plaintiff on the 2nd day of January, 2019.

92. That Plaintiff is entitled to money damages against the police officer defendants, jointly, as well as severally, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

93. That in as much as the aforesaid false imprisonment and false arrest committed by the defendant police officers upon the Plaintiff was malicious and intentional, the Plaintiff is entitled to punitive damages against the defendant police officers, jointly, as well as severally, in addition to all other monetary damages that the Plaintiff is entitled to.

AS AND FOR AN EIGHTH CAUSE OF ACTION
PLAINTIFF MIGUEL ORTIZ ALLEGES

94. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

95. That following the wrongful and illegal false imprisonment and false arrest of the Plaintiff committed by the defendant police officers as aforesaid, the Plaintiff was thereafter maliciously prosecuted.

96. This malicious prosecution was caused by and initiated by the wrongful, tortious and illegal acts of the defendant police officers as aforesaid.

97. The defendants did not have probable cause to believe that the Plaintiff was guilty of any crime at the time the Plaintiff was wrongfully prosecuted.

98. The defendant police officers, as well as the defendant THE CITY OF NEW YORK and the New York City Police Department acted in bad faith in initiating the criminal prosecution against the Plaintiff.

99. The criminal prosecution against the Plaintiff was completely dismissed in favor of the Plaintiff.

100. The criminal prosecution initiated by the defendants as against the Plaintiff was done wantonly, maliciously and in bad faith.

101. That as a result of the foregoing, the Plaintiff is entitled to money damages against the police officer defendants, jointly, as well as severally, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

102. That in as much as the aforesaid battery committed by the defendant police officers upon the Plaintiff was malicious and intentional, the Plaintiff is entitled to punitive damages against the defendant police officers, jointly, as well as severally, in addition to all other monetary damages that the Plaintiff is entitled to.

AS AND FOR A NINTH CAUSE OF ACTION

PLAINTIFF MIGUEL ORTIZ ALLEGES

103. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

104. That on the 2nd day of January, 2019, the defendant police officers acted as aforesaid solely to harm the Plaintiff and did so intentionally and without justification.

105. As a result of this prima facie and intentional tort, the Plaintiff has suffered and continues to suffer pecuniary damages.

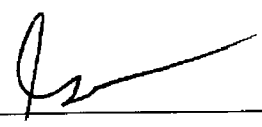
106. That Plaintiff is entitled to money damages against the defendant police officers, jointly, as well as severally, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

107. That in as much as the aforesaid intentional prima facie tortuous acts committed by the defendant police officers upon the Plaintiff was malicious and intentional, the Plaintiff is entitled to punitive damages against the defendant police officers, jointly, as well as severally, in addition to all other monetary damages that the Plaintiff is entitled to.

WHEREFORE, the Plaintiff, MIGUEL ORTIZ, demands judgment against the defendants jointly, as well as severally, on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth and Ninth Causes of Action against them, in such amounts which exceed the jurisdiction limits of all lower Courts which would otherwise have jurisdiction over this action, in addition to punitive damages to be determined by this Court, together with interest, costs, and disbursements to herein, as well as reasonable attorney's fees as provided for in 42 USC 1983, as well as attorney's fees because of the intentional, wanton and malicious acts of the defendants as aforesaid.

DATED: New York, New York
June 11, 2019

Yours, etc.

By: 

GREG GARBER, ESQ.

Attorney for Plaintiff

MIGUEL ORTIZ

60 Madison Avenue - Suite 1005

New York, N.Y. 10010

(212) 779-2740

INDIVIDUAL VERIFICATION

STATE OF NEW YORK

COUNTY OF NEW YORK)ss:

Miguel Ortiz being duly sworn, deposes and says:

I am the plaintiff in the within action and have read the foregoing *Summons & Complaint*
dated *June 11, 2019* and know the contents thereof. That the same is true to my
knowledge, except as to those matters therein stated to be alleged on information and belief, and
that as to those matters, I believe them to be true.

x *M. Ortiz*

Sworn to before me this
11 day of June, 2019

[Signature]
NOTARY PUBLIC

GREG GARBER
Notary Public, State of New York
Registration #02GA6107639
Qualified In New York County
Commission Expires June 9, 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
MIGUEL ORTIZ,

Plaintiff,

Index No.

-against-

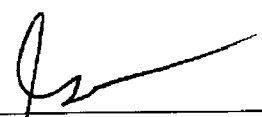
CERTIFICATION

POLICE OFFICER FIGUEROA,
THE CITY OF NEW YORK, "JOHN DOE #1",
"JOHN DOE #2" and "JOHN DOE #3,
(the names being fictitious and intended to designate
police officers whose identities are presently unknown),Defendants
-----X

GREG GARBER, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, hereby certifies in accordance with 22 NYCRR Part 130-1.1-a of the Rules of the Chief Administrator that to the best of my knowledge, information and belief, which was formed upon personal knowledge of the facts and events that occurred and after a reasonable inquiry under the circumstances, the presentation of the SUMMONS AND VERIFIED COMPLAINT and its contents are not frivolous, as the term is defined in Part 130.

DATED: New York, New York
June 11, 2019

Yours, etc.

By: 

GREG GARBER, ESQ.

Attorney for Plaintiff

MIGUEL ORTIZ

60 Madison Avenue - Suite 1005

New York, N.Y. 10010

(212) 779-2740

INDEX NO.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

MIGUEL ORTIZ,

Plaintiff,

-against-

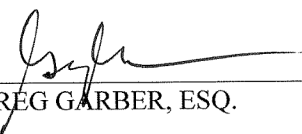
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THE CITY OF NEW YORK, "JOHN DOE #1",
"JOHN DOE #2" and "JOHN DOE #3,
(the names being fictitious and intended to designate
police officers whose identities are presently unknown),**

Defendants

SUMMONS AND VERIFIED COMPLAINT

**GREG GARBER, ESQ.
Attorney for Plaintiff
60 Madison Avenue - Suite 1005
New York, NY 10010
(212) 779-2740**

Signature Pursuant to Rule 130.1.1.-a



GREG GARBER, ESQ.
